

The National Shipping Board Rules, 1960

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The National Shipping Board Rules, 1960

Rule THE-NATIONAL-SHIPPING-BOARD-RULES-1960 of 1960

Published on 18 January 1960

Commenced on 18 January 1960

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The National Shipping Board Rules, 1960

Published vide Notification Gazette of India, 1960, Part 2, Section 3(i), page 155.

1765.

G.S.R. 92, dated 18th January, 1960. - In exercise of the powers conferred by section of the Merchant Shipping Act, 1958, the Central Government hereby makes the following rules, namely :-

1.

Short title.

- These rules may be called the National Shipping Board Rules, 1960

2.

Definitions.

- In these rules unless there is anything repugnant in the subject of context.

(i)

"Act" means the Merchant Shipping Act, 1958 (44 of 1958

);

(ii)

"Board" means the National Shipping Board established under section 4 of the Act.

(iii)

"Chairman" means Chairman of the National Shipping Board;

(iv)

"Director General" means the Director General of Shipping Bombay;

(v)

"Secretary" means the Secretary of the Board.

3.

Establishment of the Board.

- The Board shall be established for a period of two years in the first instance and thereafter, it shall be re-established at the end of every two years.

4.

Term of office of members.

(1)

The Chairman and other members of the Board shall hold office for a period of two years.

(2)

A casual vacancy in the office of Chairman shall be filled by nomination by the Central Government, and a casual vacancy in the office of any other member shall be filled by election or appointment, as the case may be. The Chairman or the member so nominated, elected or appointed to fill such vacancy shall hold office for so long only as the Chairman or the member whose place he fills would have been entitled to hold office if the vacancy had not occurred.

5.

Termination of membership before expiry of term.

- A member who is appointed by virtue of an office held by him shall cease to be a member when he ceases to hold that office and a member elected by Parliament shall cease to be a member when he ceases to be a member of Parliament.

6.

[Resignation by the Chairman and member of the Board.

[Substituted by G.S.R. 1242, dated 17th October, 1960]

- The Chairman may resign his office by a letter in writing addressed to the Central Government and a member may resign his office by a letter in writing addressed to the Chairman :

Provided that the Chairman or the Member shall continue in office until his resignation takes effect.

(2)

The resignation of the Chairman or a member shall not take effect [until it is accepted by the Central Government] or until the expiry of 30 days from the date of receipt of the letter of resignation by the Central Government or as the case may be by the Chairman, whichever is earlier.]

7.

Removal of Chairman and Members from Office.

- The Central Government may at any time remove from office the Chairman or any member of the Board-

(i)

if he is absent from India continuously for a period longer than six months and has not obtained the Board's permission for such absence;

(ii)

if he absent himself from three consecutive meetings of the Board without the permission of the Board;

(iii)

if he become insolvent;

(iv)

if he is convicted of an offence which, in the opinion of the Central Government, involves moral turpitude;

(v)

if, in the opinion of the Central Government, he has ceased to represent the interests on whose behalf he was appointed;

(vi)

if in the opinion of the Central Government it is for any other reason not desirable that he should continue to be a member.

8.

Secretary of the Board.

(1)

The Central Government shall appoint one of the members of the Board or any other person to be the Secretary of the Board.

(2)

The Secretary shall be under the general control of the Board. His duties shall be to assist the Chairman in the discharge of his functions and in particular

(a)

to convene under the directions of the Chairman meetings of the Board;

(b)

to maintain the minute books; and

(c)

to undertake such other duties as may from time to time be entrusted to him by the Board.

9.

Secretarial assistance to the Board.

- The Board shall be given adequate secretarial assistance by the Director General. Any staff that may be needed for the work of the Board shall be appointed on the establishment of the Director-General in the usual manner and shall be borne on the cadre of his office, and be paid out of his own budget.

10.

Travelling and daily allowance etc. of members.

- The Chairman and members of the Board shall be entitled to travelling and other allowances in accordance with the terms and conditions indicated below, when they are called upon to attend the meeting of the Board [or undertake tours in connection with the work relating to the Board]

[Inserted by G.S.R. 839, dated 9th June, 1965]

:-

(i)

An official member of the Board shall be entitled to travelling and other allowances as admissible under the Fundamental and Supplementary Rules and the Expenditure will be debited to their respective departments. Their travelling allowance bills will be countersigned by their respective Controlling Officers.

(ii)

[A non-official member of the Board residing at the place where the meeting is held or the work pertaining to the Board is undertaken, shall be allowed the actual expenditure incurred on conveyance subject to a maximum of Rs. 10 for each day on which he attends one or more meetings or attends to the work of the Board as the case may be.]

[Substituted by G.S.R. 839, dated 9th June, 1965]

(iii)

A non-official member not resident at the place where a meeting is held shall be allowed travelling and daily allowance as admissible according to the general orders issued in this behalf by the Central Government from time to time : Provided that in the case of a Member of Parliament, he shall be entitled to the travelling allowance and daily allowance in accordance with the rules applicable to Members of Parliament from time to time.

(iv)

Notwithstanding anything contained in the orders referred to above, a member will be entitled to draw travelling allowance for air journey at the rate applicable for such journeys if he has actually travelled by air and availed himself of the return ticket concession wherever and whenever available : Provided that the air journey has been performed with the permission of the competent authority as laid down by Government.

(v)

Likewise, a non-official member may claim travelling allowance by rail in air-conditioned accommodation provided that such travel is necessitated on grounds of health, advanced age, or infirmity or he is entitled to such travel under the rules of the organisations to which he belongs : Provided also that the journey by air-conditioned accommodation has been performed with the permission of the competent authority as laid down by Government.

(vi)

No travelling or daily allowance shall be admissible to a member unless he certifies that he has not drawn any travelling or daily allowance from any other source in respect of the journey and the halt for which the claim is made.

(vii)

The expenditure in regard to the travelling and other allowances of the non-official members of the Board shall be debited to the Budget of the Director-General.

Note. - "Competent authority" for the purpose of this rule shall be the Government of India in the Department of Transport.
11.

Controlling Officer for the purpose of sanctioning travelling and daily allowances.

- [The Director-General or the Senior Deputy Director General of Shipping shall be the Controlling Officer]

[Substituted by G.S.R. 1111, dated 16th September, 1960]

in respect of travelling allowance and daily allowance for the non-official members of the Board.

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